STATE OF NEW YORK

PUBLIC SERVICE COMMISSION

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CASE 19-G-0309: Proceeding on Motion of the Commission as the Rates, Charges, Rules and Regulations of the Brooklyn Union Gas Company d/b/a National Grid NY for Gas Service

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August 21, 2019
7:00 p.m.

The City University of New York
College of Staten Island
Recital Hall
2800 Victory Boulevard
Staten Island, New York 10314

PUBLIC STATEMENT HEARING
TRANSCRIPT OF PROCEEDINGS

BEFORE:

JAMES A. COSTELLO, Administrative Law Judge

COMMISSIONER DIANE BURMAN

REPORTED BY:

Rita Persichetty

SPEAKERS:

KEN IWAMA	COLLEGE OF STATEN ISLAND
JUDITH CANEPA	SANE ENERGY PROJECT
BOB WYMAN	
LEE ZIESCHE	SANE ENERGY PROJECT
ROXANNE SHARIF	
KIM FRACZEK	SANE ENERGY PROJECT
JOHNSON HENSHAW	SANE ENERGY PROJECT
CHARLIE MORRIS	SANE ENERGY PROJECT
RACHEL COLE	SANE ENERGY PROJECT
ALEX BEAUCHAMP	Food & Water Watch
ROBERT WOOD	350 Brooklyn
MEAGHAN BURKE	
GABRIEL REICHLER	

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P R O C E E D I N G S

JUDGE COSTELLO: We're going to go on the record. I call Case 19-G-0309, proceeding on motion of the Commission as to the rates, charges, rules, and regulations of the Brooklyn Union Gas Company, doing business as National Grid New York for gas service.

My name is James Costello. I'm an administrative law judge with the Department of Public Service, and I'm one of two administrative law judges who were assigned to this matter. With me here today is Commissioner Diane Burman.

Commissioner Burman is one of the Public Service Commissioners who will ultimately be deciding what the Company's rates and conditions of service will be going forward.

And, Commissioner Burman, would you like to make a statement?

COMMISSIONER BURMAN: Thank you. I'm just a listener today. I'm going to bring back everything that I hear to my fellow

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commissioners, and I appreciate all of you who are here and look forward to your comments.

JUDGE COSTELLO: Thank you.

So we're here today to listen to your comments, and we will summarize them on -- the administrative law judges will summarize them in a report to the other commissioners.

What the purpose of this public statement hearing -- for purposes of this public statement hearing, we ask, if you haven't done so and you want to speak, please fill out a card at the front desk. Using the speaker cards, we'll call them up. Right now we have two.

And the people -- I ask you to come up to the podium, which is on my right, your left, speak into the microphone, speak slowly, state your name.

The comments you're making are being transcribed by a court reporter. The transcript will be available. It usually takes a week to two weeks and will be

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available on the Department of Public Services website, which is www.dps.ny.gov.

Before I call up the first speaker, I just wanted to mention that Assemblyman Michael Reilly was unable to be here today, but he has sent two representatives from his office, Denise Pacheco and Victoria Gennari. And they submitted a written statement by Assemblyman Reilly, and that written statement will become part of this case and be available on the Department of Public Service website, the document matter management system that all the documents are maintained on.

So we'll turn to our first speaker, and that is Ken Iwama -- Iwama. I'm sorry.

MR. IWAMA: So it may seem a little bit like deja vu that I'm in front of you, but the one difference is that welcome to our house, the College of Staten Island. So thank you for coming.

So, good evening. My name is Ken Iwama. I'm the Vice President for

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Economic Development, Continuing Studies, and Government Relations for the College of Staten Island, the City University of New York. And thank you for this opportunity again to comment at this secondary hearing.

As I reviewed the summary of the rate case document, I am drawn to the rate case components, as they are essentially the ROI or internal investment by National Grid to its customers.

I think there is, however, a very important qualitative and quantitative piece missing, and that's the corporate responsibility component. In other words, what does National Grid bring to the Staten Island community beyond its stated core service investments?

From my perspective at the College of Staten Island, National Grid brings much. They have given the college hundreds of thousands of dollars in scholarships to our students, most of whom are Staten Island residents from families residing on

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Staten Island. These are students who may not have had the opportunity to go to college otherwise.

Additionally, in National Grid's presentation, it was mentioned -- it mentioned clean energy and economic development investment. These are more than just bullet points to the college as recently National Grid, through the assistance of Carol Decina, Lyle Sclair, and others, gave the CSI Tech Incubator, located in the North Shore. It's the largest clean tech grant, quarter of a million dollars, ever awarded in the New York metropolitan area, to the college. This grant is being used to fund tech startups who are building their companies on Staten Island.

Finally, I personally know that the National Grid, through its representatives like Carol, Lyle, and also Frank Lombardo, who is a member of our CSI Foundation Board, support numerous causes and events on Staten Island. They are omnipresent.

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In conclusion, when assessing the proposed rate increase, I would ask both Your Honor and the Commissioner to view the rate case components more holistically with consideration of all of National Grid's positive and meaningful engagements with community, including the College of Staten Island.

Thank you for your time.

JUDGE COSTELLO: Thank you.

Judith Canepa; and if I mispronounce your name, I apologize. Just correct it when you come up.

MS. CANEPA: I missed how much time I have.

JUDGE COSTELLO: I'm sorry? What's that?

MS. CANEPA: I missed how much time I have.

JUDGE COSTELLO: There's -- there's no time limit.

MS. CANEPA: Okay. I went to Siberia in 2017. The temperature hit 104 degrees -- unheard of. Alaska has

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been in the 90s. The onslaught of catastrophic climate change is rolling our way really fast. There are forest fires in the far north where they've never had them before.

I take great exception to any claims that National Grid makes that they are providing a solution to the threat of catastrophic climate change. Positing that argument on the fact that natural -- quote, natural gas produces less carbon dioxide than oil or coal. This is true. Actually, there is less off-gassing of carbon dioxide, one of the worst greenhouse gases. One of the worst if we didn't include methane, which is the primary ingredient in natural gas.

Methane, when it escapes into the atmosphere, traps heat at 106 times the potency of carbon dioxide. After 20 years, that number drops down to 86 times the potency. And if you spread it out over a hundred years, it's only about 20 times as potent.

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Methane escapes from the wellhead, the fracking wellhead, to your kitchen. Methane leaks the entire length of its journey. Methane is -- is an inescapable part of any expansion of National Grid's service area.

National Grid is asking for a hike in their rates to cover the cost -- am I on, I'm not hearing myself.

All right. National Grid is asking for this rate hike proposedly to service its customers with new pipes, but it's expanding the size of its pipes and the breadth of its pipes. Probably National Grid wants this rate hike to cover a contract that they have signed with Williams, the Northeast Supply Extension pipeline, which will cost National Grid ratepayers a billion dollars.

That includes a 14 percent profit for the gas pipeline company. National Grid isn't going to pay it out of their own pockets. They're going to charge its -- their customers.

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So I'm extremely opposed to this dangerous expansion of pipes, considering what we're facing as creatures dependent on clean air and clean water and a sustainable planet. Thank you.

JUDGE COSTELLO: Thank you.

I'm going to go off the record just for a few minutes to see if we have any further speakers at this time.

Now, if we don't, we will still be here till around 7:30. But I'll be back in a moment and let you know if we have further speakers.

(Short recess taken.)

JUDGE COSTELLO: We're going to go back on the record and start with the next speaker. That's Bob Wyman.

For people that came in right before, we just ask you to go to the podium on my right and your left and speak clearly. State your name for the record. Everything is being transcribed, and the transcript will be available in a week or two on the Department of Public Services'

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website.

MR. WYMAN: Good evening. My name is Bob Wyman. I'm a New York City resident, and I'm very concerned about the -- I should also say that I am a part of the rate case. I'm very concerned about what's being proposed, particularly in the KEDNY region.

I think it's important for us to, of course, note that we burn a lot of natural gas here in New York City. In effect, we burn so much natural gas in New York City that the carbon emissions that result from that burning in 2017 were already at a level equal to 144 percent of the total budget or the total allowed carbon emissions in the city from all sources in 2050.

Where those limits are set by Local Law 97 2019, and those -- the Local Law 97 2019 calls for 80 percent reduction of carbon emissions from the 2005 levels by 2050.

The amount of natural gas -- carbon

emissions from natural gas being burned in just buildings alone in 2017 were 144 percent of the total budget for all carbon emissions from all sources throughout the entire city.

It is clear that if the company is to do anything to conform to the requirements of our law, not a policy, not guidelines and whatever, but the requirements of our law, it will be required to dramatically reduce the amount of -- along with Con Edison -- Con Edison and KEDNY will be required to reduce significantly the amount of natural gas that they sell for burning within the city.

Now, I think we need to -- when we think about this fact, it is clear -- sorry. I should also say that the CLCPA, which is really passed by the -- by the state, also requires dramatic reductions in the consumption and burning of fossil fuels in the future, and it is of certainty, I think not a subject of debate, that such reductions will be

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required in the future.

A lot of people say don't worry about it because that's going to be sometime between now and 2050, and why do we care about limits that exist 30 years out?

Well, we need to think in terms -- when we're doing things like planning for utilities, we need to think in terms of decades, many decades looking forward. The very simple reason is when the utilities, either Con Ed or KEDNY, when they put new infrastructure into the ground, they depreciate that equipment or they recover its costs from ratepayers for a very long time.

In the KEDNY case, the normal depreciation for services, which are the connections between the main and a house, is 55 years. The normal depreciation, a normal period of over -- period of time over which costs are recovered from mains is about 80 years. It's a little higher in Con Ed's case.

But what that means is that if they

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put new pipes in the ground today, we'll be paying for that pipe for between 55 and 80 years.

Now, Con Ed -- KEDNY has this plan that they're replacing all of their leak-prone pipe over the next 20 years. And think about that pipe, the last pipe that gets replaced in 20 years from now. That pipe is going to go in the ground with KEDNY telling us that it's going to have a 55-year life. That's essentially 75 years.

Now, let's think for a moment. 75 years from now, will we be using as much natural gas in New York City as we are today? I don't think so. I just don't think so.

50 years from now, will we be using the same amount when we know that we have laws -- not only state laws but city laws that require that we dramatically reduce the amount of gases being burned by 2050.

We are not going to get 55, 75, 80 years life out of any new assets that are

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put in the ground today. That's just a fact of life.

And what -- the result is that what we should be doing when we are planning new assets is we should be doing what's called accelerated depreciation, or much faster depreciation, much faster cost recovery.

If we're putting pipes in the ground that we think will only last 30 years, we should be recovering those costs over 30 years. Not 55, not 85, not 75, but 30 years.

The problem of doing that, of course, and the reason nobody wants to do it is because that would dramatically increase the cost of gas.

I think when you look at that, the rational conclusion is to simply say the time for new gas infrastructure is over. We may need to invest in gas infrastructure where it's necessary to maintain safety requirements, but any efforts to -- to expand gas in order to do

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load building should be stopped. Because we know that any load that appears today is probably going to be temporary load. That is load that will go away long before the 55 to 80 years that it will take to recover the costs.

If I can just make one more comment here and talk about the impact that that process of cost recovery is going to have particularly on low to moderate income people.

The reality is that as we see more and more people moving in the direction that the State is trying very hard to move them, which is to go to heat pumps and other forms of more sustainable heating and cooling solutions, all of which unfortunately require large capital upfront investments, what we're seeing throughout the state and throughout the country is that it's the wealthier people, the people who have more -- more capital available to them are the ones who are being able to switch off the fossil fuels

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and go to the sustainable technologies.

The result is that the proportion of the user base for the fossil fuels, which is LMI customers, low and moderate income, is increasing on a regular basis, and we can expect that it will increase in the future.

We know as well that because the cost of these -- these assets are recovered over many decades, the fewer people we have who are using those assets, the less gas that they're consuming, more of the costs will be allocated to any one of those individuals.

See essentially over time, we can anticipate that as we drop the usage of -- as the usage of -- of natural gas falls, the cost per unit for delivering that is going to increase.

As the cost increases, the people who have the wealth and the -- and the capital are going to be increasingly motivated to move off of the fossil fuels on to the more sustainable solutions.

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That, in fact, will cause greater -- additional decreases in the consumption of fossil fuels and greater increases in the cost of delivering those fuels per unit.

So what we're going to see is essentially a death spiral. We're going to see that as the price of delivery increases, the people who have the assets are going to move to other fuels, as encouraged by the State. The people left behind will be the low and moderate income people.

And we're going to find that LMI -- that the fossil fuels will became more and more known as essentially the poor man's fuel.

But unfortunately, the poor men who are left behind are going to be paying for the assets that were put in place for the people who managed to get off of those assets after only maybe 10 or 20 or 15 or 30 years of using them and went off to something which was cheaper for them, but they left behind another 50 years of

payment obligation for the ratepayers.

I think it's essential that we look forward into the future and we understand that whatever people may say about demands today, market demand for fossil fuels today, that demand will decrease in the future. And we cannot allow ourselves to take on obligations to pay essentially for longer than the life of virtually anyone in this room for assets which are only going to have a temporary utility for us in terms of serving our needs for energy.

It is essential that we decide that now the time for growing our fossil fuel asset base has ended. It is now time for us to focus our investments on moving away from fossil fuels and doing so in a -- in a managed process, a process of essentially decapitalization, but the process of managed decapitalization for the gas assets.

It is irresponsible, it is shortsighted to -- to even be contemplating anything which involves load

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growth today. Anyway, that's all.

JUDGE COSTELLO: Thank you.

Again, I apologize. If I mispronounce your name, just correct it when you get up.

Lee Ziesche.

MS. ZIESCHE: Hi. My name is Lee Ziesche. So don't worry. I've never had anybody look at it and read it correctly; so you're, you know, in good company.

I'm an organizer with the Sane Energy Project. I'm also a documentary filmmaker who has worked with communities that have been impacted by fracking and fracked gas infrastructure for six years now. I'm also a Brooklyn National Grid ratepayer.

We're at a time where every decision we make concerning our energy system must be based on what climate science is telling us. National Grid's proposal fails miserably to do that.

Science is telling us that fracked gas is a climate disaster, yet National Grid wants to spend our hard-earned

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ratepayer dollars expanding fracked gas infrastructure.

New Yorkers overwhelmingly oppose fracking and have continued to strongly oppose fracked gas infrastructure like pipelines and LNG. And in their temporary denial of the Williams Pipeline, the Department of Environmental Conservation said New Yorkers submitted 14,000 public comments, and over 90 percent were against the Williams Pipeline. And since then, on the reapplication, we've submitted 25,000 public comments against the Williams Pipeline.

So it's very clear what New Yorkers want and what ratepayers want, and National Grid is completely ignoring what we are demanding.

So despite this overwhelming opposition, National Grid is desperately trying to push the Williams Pipeline through to lock us into decades of fracked gas use and save a dying business model just for their greedy corporate

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shareholders.

It's time for the Public Service Commission to do their job and represent New Yorkers, who are demanding heat pumps, not pipelines.

National Grid admits that it has thousands of miles of leak-prone pipeline and is proposing to spend hundreds of millions of our ratepayer dollars to replace those pipelines.

These pipelines should not be replaced with new pipelines that, as Mr. Wyman mentioned, will now become stranded assets. We should be replacing leak-prone pipe with renewables. That's what climate science is demanding. That's what ratepayers are demanding.

And very often, just as Con Ed's doing, National Grid is trying to use pipeline replacement for leak-prone pipe to actually expand gas use.

And so climate science and now a New York State law through the CLTPA requires us to reduce greenhouse emissions, and we

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cannot do that and expand fracked gas use at the same time.

We are listening to science, not National Grid and the Williams Company, who have been spreading fossil fuel industry propaganda, claiming that natural gas is clean.

We know how we get this gas out of the ground is not clean. People cannot bathe their kids in Pennsylvania or drink their water because of the gas they're trying to bring in. And we also know that gas is mostly methane, which is 86 to 106 times more potent than CO2 for the first 20 years it's in the atmosphere.

This is climate science. Those 20 years is really all we have. So to be seeing National Grid, to be seeing companies like Williams pretend that by expanding gas, that we're actually doing a good thing for the environment, it's -- honestly, it's ridiculous and it's infuriating.

And they're trying to present us with

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this false choice that, you know, gas is better than oil. Well, we -- we reject both of those choices.

We are demanding renewable energy, and so that's why so many of us are here today to say we don't want our rate -- you know, no rate hike. We're already paying some of the highest rates in the country. We don't want to pay higher rates just so National Grid's shareholders can make more money.

We are saying no rate hike, but especially no rate hike for fracked gas infrastructure. And we're also -- we want a more democratic process. I mean, we know National Grid has been given monopoly status, and that's because they're supposed to be highly regulated by the Public Service Commission, which is supposed to represent the public.

So when we go into these rate cases, our own ratepayer dollars are paying for National Grid lawyers. Well, where are our lawyers, you know?

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I'm a part-time employee of an organization that does this work, and it's very difficult for us to actually have the same amount of resources that National Grid has, even though they're using our own money.

So we're asking the Public Service Commission to demand that National Grid also has intervenor funds for us. Because if you actually talk to New Yorkers, and I think you'll see, if you look, in the -- in the docket now, there are some, I think, 700-plus comments now saying that we do not want a rate hike for fracked gas expansion. And so we need the same resources that National Grid has to be able to put forth our case and do these things.

So once again, just the main message is no rate hike for fracked gas. That's what New Yorkers want. We hope the Public Service Commission listens. Thank you.

JUDGE COSTELLO: Roxanne Sharif.

MS. SHARIF: Hi. I'm Roxanne Sharif,

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and I just, first of all, want to thank Lee for standing up here today because a lot of what I'm about to share with you today is really just an echo of her remarks and the individual before her.

But I'm coming to you today as a new resident of Queens, a ratepayer as well from previously living on Long Island. This -- and I'm also coming to you today as a young professional who sees a future here in New York, especially with new climate policies like the Climate Leadership and Community Protection Act, which really, I think, strives towards this grand, very ambitious vision of a sustainable future, which is not, you know, locked into, again, these -- these assets which 10 years from now, 20 years from now are not going to be to the benefit of not just my health but my opportunity to contribute value in our economy.

So I just want to stand here today and put a face to my comments and sort of

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just be a living example of how there are real people on the other end who are outside these rooms that could not make it here today. And I think we really just need to give that the weight it deserves, as we do want a truly deep and real democracy, so -- in the State of New York.

So I hope the public commissioner listens to what we're -- we're saying, and I -- I mean, it's not just a hope. It's sort of a live or die situation, and that's how it feels to a lot of young people. So if we're going to take care of them, we have to make the right decision here, and the obvious choice is not to invest in more fossil fuel or fracked gas infrastructure. Thank you.

JUDGE COSTELLO: Thank you.

Kim Fraczek -- Fraczek.

MS. FRACZEK: Fraczek.

Hi. My name is Kim Fraczek. I'm the director of the Sane Energy Project. I didn't prepare a statement today. I'll probably submit something in writing.

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But I do want to thank you both. It's nice to see commissioners here. You know, that's kind of cool.

But I do want to just point out that I grew up in Pennsylvania. I know what's happening on the other side of these pipelines. People are sick.

You know, my mom has sinkholes around her house because of pipeline construction, and the water in town is poisoned. So this is real; this is really happening.

So for us to expand this infrastructure in New York State is -- is criminal. It's criminal.

People I love can't drink the water out of their tap, and that's our responsibility. And New York State, I mean, we have an opportunity here in New York State because we are in a position where, you know, we pass these climate laws, we banned fracking here, and, you know, we have a lot of -- well, a lot of things going for us.

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We have the ability to actually be the leaders. And I know it's going to be hard to do that, but we have to actually implement renewable energy and replace all fossil fuel infrastructure with renewable energy.

Additionally, big hydro and nuclear energy are not the answers, but I know that we're here talking about the National Grid rate case.

The National Grid rate case is filled with asking the Public Service Commission for more money to expand this fracking infrastructure, fracking infrastructure that's harming people, living animals, and the climate where we're right now seeing, you know, wildfires and melting glaciers. This is real and this is going to come for us.

We live in a waterfront community. We faced Superstorm Sandy. We know what climate change means and what it looks like. This is not a joke, and we really actually need the Public Service

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Commission to do its job as regulators.

We need you to work together with NYSERDA and the DEC and with Governor Cuomo to say let's all get together and figure out how we're going to actually tell these new businesses in New York that are being told by National Grid right now that "we can't hook you up to new gas" in order to manufacture a crisis.

We know that we have the amount of gas. We have given all of you at the Public Service Commission a detailed report by a former DEC regional commissioner called the "False Demand Report," showing that National Grid doesn't, in fact, need more gas.

So we know that they're trying to, you know, take what is left of the fracking fields in PA, where I grew up, and just transport it out.

I mean, this is -- this is -- you know, you can't make this stuff up in the most evil Marvel comic book. It's just like we understand what they're doing

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here. They're trying to move their product to the shore, and they're trying to build a false demand that we actually need this gas when we don't.

And they're working together to manipulate small business owners here in order to make us beg for more gas, when, in fact, we have the renewable solutions. And we have been coming to the Public Service Commission with the Energy Democracy Alliance trying to -- trying to, like, demand that you guys work together with us to actually instill geothermal loops for -- instead of pipelines in neighborhoods, that we build air source heat pumps, that we make sure that the money is available there.

I mean, you guys are the regulators. They're a monopoly, and you guys are the regulators. You have the power to do this.

We are -- we are so willing to work together with you. We really need you to tell this rate case -- tell National Grid

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right now in this rate case we are not going to allow you to expand any more fossil fuel infrastructure on the backs of all of us that are ratepayers paying for it. Because this is going to end up being stranded assets, and we all know that.

This is not -- the fossil fuel industry is a finite industry. And I will say, like, getting here tonight was really tough, you know. Why don't we have -- why don't we have a hearing in my neighborhood where I'm sure a lot of people that are National Grid ratepayers would like to have a say in this. You know, we -- we had to take the ferry through the thunderstorm and then get on a bus. We missed the first bus, you know, to get down here, and, I mean, it's hard. We're all working people.

I also the work part-time at Sane Energy Project. This is -- this is -- you know, the nonprofit world is not, you know, filled with money. So it's like we're doing the best we can, and we're up

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against the largest industry on the face of the planet. And we really need you guys; we really do.

And I'm a party to the rate case; so you'll be hearing much more from me. So thank you for your time.

JUDGE COSTELLO: Thank you.

Johnson Henshaw.

MR. HENSHAW: Hi. My name is Johnson Henshaw. I live in Manhattan. I'm new to this. I got an E-mail this week with the details of what National Grid is trying to do, and I'm embarrassed to say, it like, blew my mind. And I missed the beginning; so I don't quite know what the two of you jobs are, and so I'm curious about that. If you could just let me know.

JUDGE COSTELLO: I'm an administrative law judge assigned to this case.

MR. HENSHAW: Uh-huh. Yeah.

JUDGE COSTELLO: And this is Commissioner Diane Burman. She's one of the members of the Public Service

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Commission that will ultimately decide this matter.

MR. HENSHAW: Cool. So, I guess, can I ask you a questions? You can't answer questions. It's just --

JUDGE COSTELLO: We're not here to answer questions.

MR. HENSHAW: Okay. Cool.

JUDGE COSTELLO: We're here to take comments.

MR. HENSHAW: Then I guess I'll sort of maybe ask some rhetorical questions, which is, like, Commissioner, aren't you worried about dying? Aren't you worried about your family member dying?

Like, the thing that you guys are propose -- that National Grid is proposing is going to kill all of us in this way that is crazy and doesn't even make business sense.

Like, you know, I'm married to an investment banker. I like to think I understand the drum beat of capitalism, but, like, what you guys are proposing to

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do doesn't make any sense money-wise. Or it does, I guess, for people like -- some, like, greedy pigs, like, right now who are going to make a lot of money in this moment. But we're all going to lose a ton of money and our lives later.

And it's really wild to look at someone in the face -- you don't look that old -- this is going to affect you. It's going to affect all of us. It's, like, not -- someone said it's, like, not a joke. It's not just, like, not a joke. It's life or death.

I just -- I'm sorry to -- everyone else here is so much more versed in this. I literally got an E-mail, and I was in shock that the theoretically most liberal state in the country is, like, on a fast track to one of the most regressive energy policies available to us. Like, why? Like, it just feels stupid, you know. It's sort of crazy.

And so I'm also curious, like, who's paying you? Well, no, someone else is

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obviously paying them, because they're not -- yeah, yeah, I know that she -- her salary gets paid by us, but who's paying you to make these decisions that aren't in our interest? The energy companies?

JUDGE COSTELLO: We're paid by tax dollars. But we're not here to answer questions, again.

MR. HENSHAW: Yeah, yeah, I get that. It's just, you know, I've seen enough movies -- I'm a playwright, a filmmaker. I follow the money.

And I'm deeply curious to figure out, like, why these decisions are being made, because they don't make any sense. And I'm just here pleading for my life and the lives of the people I love and for the people that you love. I'm rich, and I can't escape this. None of us can, and it's really fucking scary.

And it's so cool that you have so much power to help. I hope you do it.

JUDGE COSTELLO: Thank you.

The next speaker is Charlie Morris.

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MR. MORRIS: Hi. I'm Charlie Morris. I live in Brooklyn.

Yeah, I think a lot has been said that I -- that I agree with. The type of gas that's being brought in is poison. It's terrifying. We don't need more of it.

People look to New York as a lodestar to lead us towards interesting, cool, new, powerful things. And it seems wild to me that -- that our example for the rest of the country would be to choose gas, more gas, when there's so much opportunity in terms of green technology.

Yeah, that's all I have to say.

JUDGE COSTELLO: Thank you.

Rachel Cole.

MS. COLE: Hi. My name is Rachel Cole. I'm a ratepayer in Brooklyn, and I -- you know, we just experienced the warmest July on record globally. We just had a huge sort of -- it's no longer, like, a freak downpour anymore. It's happened throughout this summer. But we

just experienced one of those, like, hot, wet flashes of rain that are becoming more frequent, and are now sort of becoming our baseline of normalcy when it wasn't before.

So the climate crisis is happening today, and we should have been investing in renewables 30 years ago when we knew the climate science and we didn't. And we should have been investing in renewables 20 years ago and 10 years ago and 5 years ago and yesterday.

And I am complicit in this because I don't have a say in where my energy is coming from. And I, as an individual, can't take on the burden of remembering to turn off my lights and not using the air conditioner as much as I want to.

The burden is not on us as individuals to use as little fossil fuel energy as we possibly can because we don't have an alternative. The burden is on the City and is on the State and is on you to allow us to -- to allow us to have a

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future and to allow us to have -- the next generation to have a future.

And it is criminal that National Grid wants to continue to invest in fossil fuels. It's like what Kim was saying. It's like a Marvel movie.

And as a New York City resident and as a resident of New York State, it feels extraordinarily powerless for me, as an individual, looking at the -- some of the largest corporate powers on earth who want to continue to extract the very last bit of fossil fuels until we head towards a catastrophe, a climate catastrophe that we can't even quite imagine.

And we do have time to reverse the acceleration of warming, but we don't have that much time and we've lost a lot of time. So what we need to do now is make sure that it's bad and it's not catastrophic, and you have the power to help make that happen.

And you have the power to be a part of making of -- writing a history for the

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future that we can look back on and be as proud as we possibly can be, given the circumstances and given all of the time that we've already wasted. So thank you.

JUDGE COSTELLO: Thank you.

Alex Beauchamp, Beauchamp.

MR. BEAUCHAMP: It's okay.

Thanks. I'm Alex Beauchamp. Again, likely no one ever gets it right by looking at it; so I take no offense.

I'm a Brooklyn ratepayer. I'm also the northeast regional director of Food & Water Watch. Food & Water Watch is the national environmental group. We fight for those things we can't live without: Clean, safe, abundant food and water resources. And nationally we have a million supporters here in New York. We have 100,000 supporters. So proud to sort of present this on behalf of them.

You know, like others simply put, I'd say we have to reject National Grid's request to raise our rates. The company wants to charge us $236.8 million in rate

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hikes. That's an egregious increase. It's 19.3 percent in gas delivery revenues.

And New York State residents like myself, we expect bills to go up an average of $16.66. That's too much. We have to say no.

More alarming, though, as I think everyone here today has also expressed, we are adamantly opposed to any dime, a single dime of new ratepayer money going to fracked gas infrastructure.

National Grid is trying to do that under the guise of modernizing. You know, as we've already heard here tonight, New York is suffering from the effects of climate change right now. And if we have any hope of getting out of this, it has to start with stopping new fossil fuel projects.

We find ourselves in a gigantic hole; right? And yet here tonight we're basically arguing about whether we should put down the shovel or not. Clearly we

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should.

And yet National Grid continues to try to desperately deceive throughout the business model, going so far recently as saying, "We don't have a plan B if the Williams NESE fracked gas pipeline is not approved."

This is sort of amazing because Governor Cuomo and the Department of Environmental Conservation have rejected it twice. So you would assume you'd come up with a plan B. They have not.

And, look, you know, National Grid can do that. They can be shortsighted, if that's what they want to do. We cannot afford to as a state, and the Public Service Commission cannot afford to do that any longer.

So if they're too dumb to figure it out, or too shortsighted might be a nicer way to put it, to figure out the era of fossil fuels is over, we're going to have to figure it out for them.

And it's really on you; right? It's

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your duty to force National Grid to advance non-pipeline alternatives, to expand manned response programs, and to expand geothermal. They should have been doing that all along. They haven't. Now is the time to force them to do it.

And it's not just that the climate crisis demands this; right? We passed a huge climate bill into law this spring. The legislature passed it. Governor Cuomo has signed it.

And I don't want to get into the details of the law, but one key thing in there is it sets aggressive climate targets.

Now, the State has set a bunch of aggressive climate targets in the past, and we have missed -- I think it's probably fair to say we've missed all of them. If not all, we've missed virtually all of them.

So the question is going to come -- right? -- whether this new law means anything at all, whether the State is

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doing anything differently as a result of it.

And for it to work -- right? -- for us to have a prayer of hitting those targets, it's going to take, frankly, an entirely different regulatory approach. Not just from the Public Service Commission, but from every state agency all the way down the line.

You know, the days where we can have boring rate case hearings and sort of leave others to worry about climate change, that's over. Every single state decision has to take climate change into account if we're going to come anywhere near the climate goals.

I urge you to do so, and the way to do it is to reject any ratepayer money going to fracked gas infrastructure.

So I want to thank you again for the opportunity. And I want to echo Kim's comments also. It was very hard to get here. I was told there was going to be a ferry ride and one bus, and somehow there

were two buses. So it would be great to have more accessibility here. But thank you, again, for the opportunity.

JUDGE COSTELLO: Thank you.

I just want to point out, we did have hearings in Queens and in Brooklyn, downtown Brooklyn as well, that were held earlier. I don't know if those were more convenient for you, but we did have other hearings.

MS. FRACZEK: You need to have lots more public hearings and lots more public engagement.

JUDGE COSTELLO: Okay.

Robert Wood.

MR. WOOD: My name is Robert Wood. I'm representing 350 Brooklyn.

As I understand it, this is a hearing to determine the validity of National Grid's request to raise gas rates on customers, but it could just as easily be a hearing to determine the validity of National Grid's entire public charter.

Ratepayers place a tremendous amount

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of faith in privately owned public utilities to operate in the public good, particularly since those utilities are shareholders and assert monopoly control over assets the ratepayers cannot function without.

Yet as evidenced by the way National Grid has manipulated and trampled over that public this spring and summer, that trust has been conclusively and spectacularly checked.

Since May of this year, National Grid has been holding small businesses in New York hostage in order to manipulate politicians into approving a pipeline that would itself raise rates while not being in anyone's interest.

The toll has been significant. Small business proprietors are hemorrhaging money right now since they can't open new locations as planned, and behind it all is a lie about gas shortage that the utility has perpetuated, and one that the public could be forgiven for believing since no

regulator, including the PSC, has done its job and assessed the real need for this pipeline.

It is in this vacuum that National Grid has been able to make its manipulative claims, playing ratepayers and regulators as fools in the hopes that they will buy the fact that their gas service has been denied because of the rejection of a pipeline that, if built, wouldn't even be completed for at least another year and a half.

But the evidence -- evidence against National Grid's claims remains overwhelming.

Number one, National Grid, in its contracts with Williams, originally agreed to purchase only 350,000 dekatherms of gas a day and 50,000 more only when there weren't more takers. This alone proves that at least 50 percent of the gas is unneeded.

Two, over of the past five years, National Grid sold $284 million worth of

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this supposedly needed gas to third parties, while keeping 15 percent of those profits for its bottom line.

Three, PSC records show that in 2017, National Grid used 35 percent less gas than anticipated, even as its customer base grew far beyond expectations.

Four, National Grid recently chose to not renew pipeline contracts with the Union, TransCanada, and Empire Pipelines that delivered gas supplies from Canada, in effect rejecting pipeline capacity that could have been used to transport this supposedly needed gas.

And, of course, there are a myriad of other examples, one of which is the false demand report that Kim mentioned earlier.

The debate on this matter is closed. National Grid has been lying to its customers about a gas shortage and is actively hurting them in the process.

For them to ask those same customers to further subsidize this epically rotten behavior, much less thousands of safety

violations, gas leaks, and the climate crisis with a rate hike is an affront to reason.

This is a company that recently spent hundreds of thousands of dollars on radio and other ads, pushing captive ratepayers to lobby for its own corporate benefit. If National Grid truly functioned in the public interest, it would have spent that money working with state officials to educate small businesses about heat pumps, induction stoves, and other renewable appliances that would have rendered these manufacturing crisis a non-issue; yet National Grid has made choices, and the PSC should too. No rate hikes for a company that has avoidably and repeatedly violated the public trust. Thank you.

JUDGE COSTELLO: Meaghan Burke.

MS. BURKE: Hello. My name is Meaghan Burke. I grew up on the north fork of Long Island and have been living on the upper east side for over five years.

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National Grid wants to save their business model by locking us into decades of more fracked gas. While National Grid scratches the backs of their fossil fuel CEO friends, they make commitments without ratepayer consent to fund pipelines that will become stranded assets long before we finish paying for them.

Why do parents struggling to make ends meet have to choose between paying a power bill or filling their child's inhaler prescription for asthma caused by a filthy power systems that pads billionaires' pockets.

Climate science proves that we need to divorce ourselves from dirty fossil fuels.

National Grid claims its plans are in line with state goals, but its proposal to spend millions of public dollars on fracked gas infrastructure expansion goes against our climate legislation. Where is the investment in energy efficiency and heat pumps?

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Statewide opposition to fracked gas has been relentless for years. We even banned fracking. Now we want to turn off the valve on all fossil fuel infrastructure because New Yorkers and families across colonialist state borders are being poisoned for unfathomable private profit under the guise of a public utility.

Thank you for hearing me and members of the public tonight so that you are able to serve our interests.

JUDGE COSTELLO: Thank you.

Gabriel Reichler.

MR. REICHLER: Yes. Hello. My name is Gabriel Reichler. I'm 20 years old, and I have lived here in five boroughs my entire life.

In around the beginning of middle school, I first started becoming concerned about the climate crisis and about other threats that we are currently facing as a city and as a whole human species.

So the way I reacted initially was to

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try to do whatever I could individually to make changes: Not buy new products, to avoid using single use products, to avoid using electricity very much, to mostly trying to be very stable in transportation.

And what I came to realize was that this was just not the way to actually make any difference, because meanwhile there were large corporations like Con Ed and National Grid that were just still profiteering off of this climate destruction, off of threatening all of the people in the city, and off of the backs of all of us. We were paying them to do this because they're legally permitted to do that and charge us.

And it required standing up to their attempts to -- to charge us more so that they could destabilize the climate further.

So now I'm here to try to prevent them from doing just that because we have the ability to stop them from building

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pipelines for supplying gas. It's really not needed.

I mean, ultimately what it looks like is that they're just trying to get this gas close to -- close to the water so that they can export it to other countries like Asia -- places in Asia and places in Europe where there might be more demand and less supply so they can get higher prices for it. And right now, we can't have them do that at our expense.

These pipelines will keep carrying -- they're meant to keep carrying gas for multiple decades. And during that time, they don't just carry gas that -- that gets burned and releases carbon dioxide. They also leak a lot of gas, which, of course, is methane, a very potent greenhouse gas.

So then what I now understand is that we have approximately 12 years to -- to get to net zero emissions in the United States of America. That's the result of the IPCC report and the -- the report the

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National Climate Assessment released last year by the current administration in our government, which has been one of the most anti-climate tax administrations.

And they're still coming to the conclusion that we have 12 years as of last year; so a little over 11 years now. And we can't afford to build infrastructure that will keep locking in emissions for the next few decades and that will also immediately release methane, which will last for about 20 years at a very high potency of greenhouse effect and will also turn into degraded carbon dioxide, which lasts forever, of course.

So we can't allow that to be done at all, and we also can't allow that to be done and then for us to be charged for it.

You must reject this application to raise rates to pay for a new pipeline because we can build renewables instead, cheaper, cleaner, faster. And we could be spending this money -- instead we could be

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spending this money on the pipeline or we can spend less of it on renewables. That will give us even more power, and that will last much longer and that won't destabilize the climate.

So I urge you to pay for the latter, not the former. Thank you.

JUDGE COSTELLO: Thank you.

We've gotten to the last of the speakers, and at this time, we're going to close the session.

I want to thank everybody for participating, and have a good evening, safe home.

COMMISSIONER BURMAN: Thank you.

(Time noted: 8:00 p.m.)

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C E R T I F I C A T E

STATE OF NEW YORK)
:ss
COUNTY OF RICHMOND)

I, RITA M. PERSICHETTY, a Notary Public within and for the State of New York, do hereby certify that the within is a true and accurate transcript of the proceedings taken on August 21, 2019.

I further certify that I am not related to any of the parties to this action by blood or marriage; and that I am in no way interested in the outcome of this matter.

IN WITNESS WHEREOF, I have hereunto set my hand this 29th day of August, 2019.

Rita M. Persichetty
RITA M. PERSICHETTY

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